

**FEDERAL MARITIME COMMISSION**  
**Office of the Administrative Law Judges**

AMANDA JUNE HAGARTY, *Claimant*

**DOCKET NO. 2067(I)**

v.

TRANSPARENT LOGISTICS LLC DBA TRANSPARENT  
INTERNATIONAL, *Respondent*.

Served: September 4, 2026

**ORDER OF:** Jamie L. MENDELSON, *Small Claims Officer*.

**INITIAL DECISION<sup>1</sup>**

**I. INTRODUCTION**

This proceeding arises from a small claims complaint (“Claim”), filed by Amanda June Hagarty (“Claimant”) against Transparent Logistics LLC dba Transparent International (“Respondent”), before the Federal Maritime Commission (“FMC” or “Commission”). Claimant paid Respondent, an ocean transportation intermediary, for an international shipment of Claimant’s household goods from Bellingham, Washington, to Cork, Ireland. Respondent hired a third-party mover to pick up Claimant’s household goods and store them pending shipment. However, Respondent never shipped the household goods. Instead, Respondent abandoned Claimant’s household goods with the third-party mover and never paid the third-party mover. As a result, Claimant was forced to pay the third-party mover for accrued storage fees in order to obtain the release of the household goods and then hire a different international moving company to ship the household goods to Ireland. Claimant alleges that Respondent has violated section 41102(c) of the Shipping Act, 46 U.S.C. § 41102(c), and seeks reparations for the amount paid to Respondent and the amount paid to the third-party mover in order to obtain the release of the household goods. Respondent has failed to respond to the Claim or otherwise appear in this proceeding. As explained more fully below, a decision on default is issued in this case and Claimant is awarded reparations in the amount of \$7,140.00, plus interest.

**II. PROCEDURAL HISTORY**

On June 19, 2026, the Office of the Secretary (“OS”) of the FMC received the Claim for informal adjudication. On June 24, 2026, the Secretary of the FMC issued a Notice of Filing of Small Claims Complaint and Assignment (“Notice”), and sent the Notice, together with a copy

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<sup>1</sup> Pursuant to 46 C.F.R. § 502.304(g), this decision will become final unless the Commission elects to review it within 30 days of service.

of the Claim, by FedEx to Respondent's address on file for service of process with the Secretary of State of New York, where Respondent is registered as a limited liability company. The Notice advised Respondent that it was required to file a response to the Claim by July 6, 2026, and indicate whether it consents to the adjudication of the Claim under the informal procedures provided at Subpart S of the Commission's Rules of Practice and Procedure (46 C.F.R. § 502.301-305) ("Rules"). FedEx successfully delivered the Notice and Claim on July 2, 2026, as evidenced by the FedEx proof of delivery for tracking number 873497161212.

Respondent did not file a response and therefore did not refuse to consent to the informal procedures.

On July 22, 2026, the Chief Administrative Law Judge assigned this proceeding to the undersigned Small Claims Officer ("SCO") for adjudication under the informal procedures for small claims.

On July 24, 2026, an Order for Respondent to Show Cause ("OSC") was issued, requiring Respondent to show cause by July 31, 2026, why a default judgment should not be entered against it for failing to file a response to the Claim. The OSC warned Respondent that a failure to respond could cause Respondent to be deemed in default and reparations to be awarded to Claimant. The OSC was successfully delivered to Respondent's address on July 27, 2026, as evidenced by FedEx proof of delivery for tracking number 874840598984. Respondent did not respond to the OSC.

On August 3, 2026, a Request for Information ("RFI") was issued to Claimant. Claimant submitted a response to the RFI, along with supporting documentation, on August 3, 2026. ("C. RFI Resp.").

### **III. PRELIMINARY ISSUES**

#### **A. Jurisdiction**

The Shipping Act provides that a "person may file with the Federal Maritime Commission a sworn complaint alleging a violation of this part." 46 U.S.C. § 41301(a). Pursuant to this provision, the Commission has exclusive jurisdiction over a complaint alleging that a respondent committed an act prohibited by the Shipping Act. *See Anchor Shipping Co. v. Aliança Navegação E Logística Ltda.*, Dkt. No. 02-04, 30 S.R.R. 991, 2006 WL 2007808, at \*11 (FMC May 10, 2006); *see also Cargo One, Inc. v. COSCO Container Lines Co. Ltd.*, Dkt. No. 99-24, 28 S.R.R. 1635, 1645, 2000 WL 1648961, at \*15 (FMC Oct. 31, 2000). Here, the Commission has jurisdiction because the Claim alleges a violation of section 41102(c) of the Shipping Act.

It appears that Respondent may have ceased its business operations. Respondent stopped communicating with Claimant, no longer maintains its website,<sup>2</sup> had its FMC ocean

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<sup>2</sup> The moving estimate and shipping invoices issued by Respondent include Respondent's website <https://www.movingtransparent.com>. (Claim at Exs. 1, 2). The website is no longer active and displays the message "Site Currently Unavailable." <https://www.movingtransparent.com> (last visited Aug 25, 2026).

transportation intermediary license revoked on October 19, 2025, for failure to maintain a bond,<sup>3</sup> and has failed to respond in this proceeding. Respondent is a registered limited liability company in the State of New York under the entity name Transparent Logistics LLC, with an assumed name of Transparent International.<sup>4</sup> The State of New York Division of Corporations official website shows that Respondent last filed a Biennial Statement on September 19, 2025, and reflects a current entity status of “active.”<sup>5</sup> Thus, even if Respondent has ceased business operations, it does not appear that Respondent has legally dissolved. Pursuant to New York Business Corporation Law § 1006, even if Respondent legally dissolves, it “may ... be sued in all courts and participate in actions and proceedings, whether judicial, administrative, arbitral or otherwise, in its corporate name, and process may be served by or upon it” and the “dissolution of a corporation shall not affect any remedy available to or against such corporation, its directors, officers or shareholders for any right or claim existing or any liability incurred before such dissolution.” N.Y. Bus. Corp. Law § 1006(a)(4) and (b).

## **B. Default**

Respondent has failed to respond in this proceeding by failing to file a response to the Claim and failing to respond to the OSC. “Under such circumstances, it is customary for the Commission as well as courts to find that a defaulting respondent has admitted the well-pled allegations both as to the specific violations of law alleged and as to the specific money damages alleged.” *Smart Garments v. Worldlink Logix Servs.*, Dkt. No. 10-11, 2011 WL 7144015, at \*1 (ALJ Oct. 31, 2011) (citations omitted), *aff’d* 2013 WL 9808693 (FMC Sep. 12, 2023). “The presiding officer may issue a default judgment, a cease and desist order, or other just ruling against a party that fails to respond to a properly served order or pleading.” *Smart Garments*, 2013 WL 9808693, at \*2 (citations omitted).<sup>6</sup>

Here, Respondent was properly served the Claim at its address for service of process on file with the New York Secretary of State.<sup>7</sup> Despite being properly served, Respondent did not respond to the Claim, nor did it respond to the OSC. By failing to contest the allegations against it, the allegations are deemed admitted.

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<sup>3</sup> <https://www.fmc.gov/wp-content/uploads/2025/12/2025.10-October-OTI-License-Revocations-and-Surrenders.pdf> (last visited Aug. 25, 2026).

<sup>4</sup> See <https://apps.dos.ny.gov/publicInquiry/AssumedNameHistory> (last visited Aug. 25, 2026).

<sup>5</sup> See <https://apps.dos.ny.gov/publicInquiry/FilingHistory> (last visited Aug. 25, 2026).

<sup>6</sup> Although not directly applicable to the informal procedures in small claims proceedings, Commission Rule 65 provides that a party to a proceeding may be deemed to be in default if that party fails to answer or otherwise to defend the proceeding. 46 C.F.R. § 502.65(a)(2). When a party is found to be in default, the presiding officer may issue a decision on default upon consideration of the record, including the complaint. *Id.* § 502.65(b). Decisions on default have also been issued in small claims proceedings. See, e.g., *Fenton v. Rocky Mountain Overseas*, Dkt. No. 1965(I) (SCO Feb. 17, 2021), *admin. final* Mar. 22, 2021.

<sup>7</sup> See <https://apps.dos.ny.gov/publicInquiry/EntityDisplay> (last visited Aug. 25, 2026).

## IV. FINDINGS OF FACT

### A. Parties

1. Claimant Amanda June Hagarty is an individual currently residing in Cork, Ireland. (Claim at ¶ 1).
2. Respondent Transparent Logistics LLC dba Transparent International is a limited liability corporation registered in the State of New York with an active entity status. (Claim at ¶ II; <https://apps.dos.ny.gov/publicInquiry/EntityDisplay> (last visited Aug. 25, 2026)). Respondent's registered entity name is Transparent Logistics LLC, with an assumed name of Transparent International. (<https://apps.dos.ny.gov/publicInquiry/AssumedNameHistory> (last visited Aug. 25, 2026)).
3. Respondent held itself out as a company providing international moving services. (Claim at Att. 3).
4. Respondent's web address is [www.movingtransparent.com](http://www.movingtransparent.com). (Claim at Ex. A, p. 5).<sup>8</sup> Respondent's website is no longer active and displays the message "Site Currently Unavailable." ([www.movingtransparent.com](http://www.movingtransparent.com) (last visited Aug. 25, 2026)).
5. Respondent was an FMC licensed ocean transportation intermediary until its license was revoked on October 19, 2025, for failure to maintain a bond. (<https://www.fmc.gov/wp-content/uploads/2025/12/2025.10-October-OTI-License-Revocations-and-Surrenders.pdf>).

### B. Shipping Agreement

6. On July 15, 2025, Claimant entered into a contract with Respondent to transport Claimant's household goods from Bellingham, Washington State to Cork, Ireland. (Claim at ¶ II.A and Att. 3). The scope of services included, among other things, loading the goods in a container, trucking to the port or origin, ocean freight, customs clearance, and trucking and delivery of the goods from the destination port to the home delivery address. (Claim at Att. 3). The contract reflected a move date of August 11, 2025, a move cost of \$5,340.00, and transit time of 4-16 weeks. (*Id.*). The contract also included Respondent's "OTI-NVOCC" number "026891N." (*Id.*).
7. On July 30, 2025, Respondent invoiced Claimant \$5,340.00. (Claim at Att. 2). The invoice included Respondent's "OTI-NVOCC" number "026891N." (*Id.*). The invoice reflected that full payment was received. (*Id.*). Claimant paid Respondent the full invoiced amount of \$5,340 plus an additional \$175.00 for cargo insurance. (*Id.* at ¶ II.A and Att. 2).

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<sup>8</sup> The Claim and attached exhibits are not paginated. The page numbers throughout this decision refer to the PDF file page number.

8. On August 8, 2025, a third-party mover hired by Respondent picked up Claimant's household goods. (Claim at ¶ III.B). On August 12, 2025, Respondent emailed Claimant stating that the goods would be delivered to Respondent's warehouse in California where they would then be shipped from. (Claim at Att. 5).

**C. Respondent's Failure to Ship the Household Goods**

9. On February 2, 2026, Respondent's Operations Manager sent Claimant the following email message, acknowledging that Claimant's household goods remained in a warehouse:

I certainly apologize for the drop in communication. Your shipment is safe in a climate controlled warehouse. Moving forward please feel free to reach out to me regarding the shipment. I will inform you as soon as the situation is resolved.

(Claim at Att. 4, p. 1).

10. On or about February 24, 2026, Claimant received a voicemail message from the third-party mover in Washington that picked up Claimant's household goods. (Claim at Att. 4, pp. 1-2). The transcript of the voicemail message stated, in relevant part:

we have been trying to contact transparent for the last 4 to 5 months to pay us for a services And unfortunately they have not answered our phone and we have recently heard that they have actually gone out of business and we want to go and we wanted to go ahead and reach out to you about that and see if youre still interested in shipping these items because if so we can refer you to a different moving company but we do just also have a bill here that does need to be paid

(Claim at Att. 4, p. 2) (spelling and grammar as in original).

11. On February 24, 2026, Claimant emailed Respondent the transcript of the voicemail message. (Claim at Att. 4, p. 2). In the email message, Claimant asked Respondent, "Are we going to have to pay [the third-party mover] to release our items? Have you gone out of business?" (*Id.*). Claimant did not receive any response from Respondent and could no longer reach Respondent at their phone number. (*Id.*). Claimant sent a follow-up email to Respondent's Operations Manager on April 14, 2026, but received a message that the email was undeliverable because the email address was not found. (*Id.* at pp. 203).
12. The third-party mover informed Claimant that the household goods remained at their warehouse in Washington State accruing storage fees. (Claim at ¶ III.B; C. RFI Resp. at Att. "Insurance Claim Correspondence.pdf", p. 3).

**D. Claimant's Mitigation Efforts**

13. The third-party mover demanded payment of \$1,625.00 to release Claimant's household goods from storage at their warehouse. (Claim at ¶ III.B and Att. 7). The mover issued an invoice to Claimant billing "Storage" from "9/12/2025-5/12/2026" in the amount of \$1,625. (*Id.* at Att. 7). On or about April 23, 2026, Claimant paid the third-party mover \$1,625.00 to obtain release of the household goods. (*Id.* at ¶ III.B and Att. 6).
14. Claimant then hired a different international moving company to ship the household goods to Ireland for \$5,069.75. (Claim at ¶ III.B).
15. On April 14, 2026, Claimant emailed the cargo insurance provider (for the cargo insurance purchased through Respondent), inquiring about insurance coverage. (C. RFI Resp. at Att. "Insurance Claim Correspondence.pdf", p. 1).
16. On April 15, 2026, a loss adjuster with "WTI" responded to Claimant stating that a cargo insurance claim was opened under number 2026-465. (C. RFI Resp. at Att. "Insurance Claim Correspondence.pdf", p.1). On May 5, 2026, the loss adjuster emailed Claimant stating, "We are doing everything we can on our end to move this forward and reach a resolution as efficiently as possible." (*Id.* at p. 7). The record does not contain any further correspondence regarding the cargo insurance claim after May 5, 2026.
17. In response to the RFI, Claimant declared under penalty of perjury that the cargo insurance claim remains unresolved, no final determination of coverage has been made, and no payment has been received. (C. RFI Resp. at No. 2).
18. Claimant also filed a bond claim with Respondent's surety Hudson Insurance Company ("Hudson"), pursuant to 46 U.S.C. § 40902(b) and 46 C.F.R. § 515.23. (C. RFI Resp. at No. 3 and Att. "Ltr to Claimant - No Judgment 5-27-26"). On May 27, 2026, the firm representing Hudson issued a letter to Claimant denying the bond claim on the grounds that there is neither a judgement against Respondent nor a settlement. (*Id.*). The letter states in relevant part:

The bond was issued pursuant to the Shipping Act of 1984, 46 U.S.C. 40101-41309. The condition of the bond is that the penalty amount is available:

"to pay any judgment or any settlement made pursuant to a claim under 46 CFR 515.23 for damages against the Principal arising from the Principal's transportation-related activities or order for reparations issued pursuant to section 11 of the Shipping Act (46 U.S.C. 41301-41302, 41305-41307(a)) or any penalty assessed against the Principal pursuant to section 13 of the Shipping Act (46 U.S.C. 41107-41109)."

The Proof of Claim seeks recovery under the surety's bond. After reviewing your claim and the documents submitted, the surety found that the condition of the bond has not been met. There is no indication that a

judgment against the Principal has been obtained, nor has a settlement been made as to your claim, pursuant to 46 CFR 515.23. Therefore, based on the language of the bond, the surety must respectfully deny your claim.

(*Id.*).

## V. ANALYSIS

### A. Violation of Section 41102(c)

Section 41102(c) of the Shipping Act states that a “common carrier, marine terminal operator, or ocean transportation intermediary may not fail to establish, observe, and enforce just and reasonable regulations and practices relating to or connected with receiving, handling, storing, or delivering property.” 46 U.S.C. § 41102(c). The elements of a section 41102(c) claim are that:

- (1) The respondent is an ocean common carrier, marine terminal operator, or ocean transportation intermediary;
- (2) The claimed acts or omissions of the regulated entity are occurring on a normal, customary, and continuous basis;
- (3) The practice or regulation relates to or is connected with receiving, handling, storing, or delivering property;
- (4) The practice or regulation is unjust or unreasonable; and
- (5) The practice or regulation is the proximate cause of the claimed loss.

46 C.F.R. § 545.4.

Here, Claimant’s allegations, supported by evidence submitted into the record, establish that Respondent violated section 41102(c). With respect to the first element, Respondent was a licensed ocean transportation intermediary with the FMC at the time Respondent accepted payment for an international shipment of Claimant’s household goods. Moreover, Respondent held itself out as a company arranging international ocean transportation of household goods from the United States to foreign destinations. Accordingly, the first element is met.

With respect to the second element, Respondent’s conduct was not an isolated incident, but rather the continuous manner in which Respondent was conducting business. *See Interpretive Rule, Shipping Act of 1984*, 83 Fed. Reg. 64478, 64479 (Dec. 17, 2018) (a violation requires a showing that “the unreasonable regulation or practice was the normal, customary, often repeated, systematic, uniform, habitual, and continuous manner in which the regulated common carrier was conducting business”). To date, the Commission has received at least four other complaints filed against Respondent from different claimants alleging the same pattern of accepting payment for an international shipment of household goods, and then failing to ship or deliver the household goods and ceasing communication. On the same date as the issuance of the Initial

Decision in this matter, Initial Decisions are also being issued in those four separate cases finding that Respondent engaged in the same unreasonable practice.<sup>9</sup>

The third element is also met. Respondent's conduct related to the pickup, shipment, and delivery of Claimant's household goods from Washington to Ireland—thus relating to the “receiving, handling, storing, or delivering property.” 46 C.F.R. § 545.4(c).

Respondent's conduct was patently unreasonable, as Respondent accepted payment for an international shipment of Claimant's household goods, but then abandoned the household goods with a third-party, never paid the third-party storage fees, never shipped the household goods, and ceased communicating with Claimant. Accordingly, the fourth element is met.

Finally, the last element is met, as Respondent's conduct proximately caused Claimant to suffer losses—Claimant paid Respondent for a shipment that Respondent never performed.

## **B. Reparations**

Claimant seeks reparations in the amount of \$6,965, which consists of: \$5,340 paid to Respondent for the shipment Respondent never performed, and \$1,625 paid to the third-party mover to obtain the release of the household goods from the warehouse.

Pursuant to section 41301, a “complainant may seek reparations for an injury to the complainant caused by [a] violation” of the Shipping Act. 46 U.S.C. § 41301(a). “If the complaint was filed within [three years after the claim accrues], the Federal Maritime Commission shall direct the payment of reparations to the complainant for *actual* injury caused by a violation.” *Id.* § 41305(b) (emphasis added). Accordingly, “[r]eparations will only be awarded based on actual damages.” *Color Brands, LLC v. AAF Logistics, Inc.*, Dkt. No. 22-18, 2024 WL 4034609, at \*2 (ALJ Aug. 27, 2024), *admin. final* Sep. 27, 2024. “The term ‘actual damages,’ ... means those recoverable from a wrongdoer as compensation for the actual loss or injuries sustained by reason of the wrongdoing.” *California Shipping Line, Inc. v. Yangming Marine Transport Corp.*, Dkt. No. 88-15, 1990 WL 427466, at \*23 (FMC Oct. 19, 1990). “That does not require absolute precision but does require evidence sufficient to reasonably infer the actual loss sustained.” *MAVL Capital Inc. v. Marine Transport Logistics, Inc.*, Dkt. No. 16-16, 2022 WL 2209421, at \*3 (FMC June 10, 2022). The Commission allows the adjudicator discretion in determining the amount of reparations. *Samsung Electronics America, Inc. v. SM Line Corp.*, Dkt. No. 23-01, 2026 WL 2427726, at \*10 (FMC Aug. 13, 2026). In awarding reparations for actual injury, the Commission considers whether the claimant “has received something it wanted” and avoids an award of reparations that would cause a claimant to “unfairly receiv[e] a windfall.” *CMI Distribution, Inc. v. Service By Air, Inc.*, Dkt. No. 17-05, 2021 WL 3367603, at \*17 (FMC Jul. 26, 2021); *see also* *TPG Pressure, Inc. v. Omni Logistics LLC*, Dkt. No. 22-31, 2024 WL 4226354, at \*42 (ALJ Sept. 12, 2024) (calculating a reparations award that “prevent[ed] the shipper from unfairly receiving a windfall”); *Carrier Int’l Corp. v. Waterman Steamship Corp.*, Dkt. No. 85-1, 1985 WL 148944, at \*4 (FMC Dec. 30, 1985) (reversing ALJ’s award of reparations because it would “result[] in an unanticipated and unwarranted windfall to Complainant if reparations [were] awarded.”).

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<sup>9</sup> Docket Nos. 2059(I), 2061(I), 2063(I), and 2064(I).

Here, Respondent's violation proximately caused injury to Claimant in the form of the \$5,340 Claimant paid to Respondent for the shipment that Respondent never performed, \$175 Claimant paid to Respondent for cargo insurance, and \$1,625 Claimant paid to obtain the release of the household goods from the third-party mover that Respondent hired but never paid, totaling \$7,140.

It is important to note that if Claimant were to receive a payment from the cargo insurance provider WTI, such payment should be offset from the reparations award. Without an offset, Claimant would receive an unanticipated windfall, placing Claimant in a better position than bargained for. In response to the RFI, Claimant avers that the cargo insurance claim has not been resolved and no payout has been received. (C. RFI Resp. at No. 3). In order to avoid a potential double recovery, Claimant shall inform Respondent's bond surety in the event Claimant's cargo insurance claim is settled or any payment is received.

Finally, "actual injury" includes "the loss of interest at commercial rates compounded from the date of injury." 46 U.S.C. § 41305(a). It is reasonable to consider the date of injury as the date Complainant paid Respondent for the shipment. Respondent's July 30, 2025, invoice to Claimant reflected that the invoiced amount was already paid. (Claim at Att. 2). As absolute precision is not required, July 30, 2025, shall be considered the date of injury for purposes of calculating the interest due.

## VI. CONCLUSION

It is hereby **ORDERED** by default that Respondent violated 46 U.S.C. § 41102(c). It is

**FURTHER ORDERED** that Respondent must pay reparations in the amount of \$7,140.00, plus interest calculated from July 30, 2025.

**SO ORDERED**

Jamie L.

Mendelson -S

Digitally signed by  
Jamie L.  
Mendelson -S

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Jamie L. Mendelson  
Small Claims Officer